



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

October 20, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 14317

EXPIRATION DATE: 2026-09-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Eurotainer
Puteaux, France

US AGENT: Eurotainer U.S. Inc.
Humble, TX

2. PURPOSE AND LIMITATIONS:

a. This special permit authorizes the use of certain UN portable tanks conforming to the requirements of § 172.102(c)(7) PORTABLE TANK CODE T50, which are designed and constructed in accordance with Section VIII, Division 2 of the ASME Code instead of Section VIII, Division 1. The portable tanks, mounted in ISO frames, are authorized for the transportation in commerce of Division 2.1 and 2.2 hazardous materials. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.

b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.

c. No party status will be granted to this special permit.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 178.274(b) and 178.276(b)(1) in that tanks are designed, constructed, certified and marked in accordance with Section VIII, Division 2 of the ASME Code; and § 178.276(a)(2) in that a design reference temperature less than 55 °C is not authorized, except as specified herein.

Tracking Number: 2022094587

5. BASIS: This special permit is based on the application of Eurotainer dated August 12, 2022, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Division 2.1 and 2.2 materials authorized for UN portable tanks (see PORTABLE TANK CODE T50)	2.1 & 2.2	As appropriate	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packaging prescribed is a UN portable tank conforming to the requirements of § 172.102(c)(7) PORTABLE TANK CODE T50, which are designed, constructed, certified and stamped in accordance with Section VIII, Division 2 of the ASME Code, including all applicable ASME Code Cases. Each portable tank must be constructed in accordance with the manufacturer's drawings, specifications and calculations on file with the Office of Hazardous Materials Safety (OHMS) and in accordance with the following requirements (See paragraph 8.g. for additional requirements for the manufacturer):

- (1) Code: Tanks must conform to all the requirements for UN portable tanks in §§ 178.274 and 178.276 and with PORTABLE TANK CODE T50 in all respects except for the design code and design reference temperature. This special permit authorizes the use of Section VIII, Div. 2 of the ASME Code as the design code.
- (2) Design pressure: The design pressure must not be less than the vapor pressure of the lading, including any gas padding, at a design reference temperature of 46.1°C (115°F).
- (3) Material: SA612N carbon steel.

- (4) Tank capacity and pressure: The following range of designs is authorized:

Design pressure (see Note 1)	150 psig min.; 500 psig max
Water capacity	4,500 USWG min.; 6,550 USWG max.

Note 1: The design pressure means the “Maximum Allowable Working Pressure” as used in the ASME Code.

- (5) Maximum Gross Weight: 34,000 kg (75,140 lbs).
- (6) Design temperature range: -40/55 °C (-40/131 °F).
- (7) G-Loadings: Vertical down – 2; Vertical up – 2; Longitudinal – 2; Transverse – 2.
- (8) Insulation: None. However, each tank must be provided with a sunshield.
- (9) Baffles: two or three.
- (10) No new manufacture is authorized after August 31, 2020.

b. TESTING:

- (1) Hydrostatic test certificates for each tank must be maintained by the owner and made available upon request to any representative of DOT.
- (2) A test report documenting a satisfactory ISO prototype test for each tank design must be on file with OHMS prior to the first shipment.
- (3) Each tank must be inspected and tested as specified in § 180.605(c)(1) for UN portable tanks.

c. OPERATIONAL CONTROLS:

- (1) The pressure produced by the lading and any gas padding at 46.1 °C (115 °F) may not exceed the design pressure of the portable tank.
- (2) Each portable tank must be filled by weight.
- (3) Each tank must be visually inspected prior to shipment to ensure that it has not been damaged during loading.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.
- b. A person who is not a holder of this special permit but purchases or leases a packaging covered by this special permit, may offer it for transportation provided no modification or change is made to the packaging and it is offered for transportation in conformance with this special permit and the HMR.
- c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- d. Each packaging that was manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Safety (OHMS) for a specific manufacturing facility.
- e. In addition to markings specified in § 178.274(i), each portable tank must be plainly marked on both sides near the middle, in letters and numerals at least two inches high on a contrasting background: "DOT-SP 14317".
- f. The following documentation must be submitted by the manufacturer and acknowledged in writing by OHMS prior to the first shipment in any portable tank design:
 - (1) Design drawings for each portable tank design.
 - (2) ASME certificate of accreditation indicating a current/valid ASME "U2" stamp.
 - (3) RPE-stamped User Design Specification/ Manufacturer's Design Report (ref. AG – 301/302 of Section VIII-Div. 2 of the ASME Code) and the required stress/fatigue analyses (ref. Appendices 4 + 5 of Section VIII-Div. 2 of the ASME Code) for each tank design.
 - (4) The designated approval agency must verify compliance with all requirements of §§ 178.274 and 178.276 and PORTABLE TANK CODE T50 as modified by this special permit.

- g. Transportation of Division 2.1 hazardous materials (flammable gases) are not authorized aboard cargo vessel unless specifically authorized in the Hazardous Materials Table (§ 172.101).
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.
- Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.
- No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.
- Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.
12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "Dan B.", is written over a faint, circular official stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: JN